**MAHATMA GANDHI UNIVERSITY, KOTTAYAM**
**MGU-UGP (HONOURS)**
**FIFTH SEMESTER EXAMINATION -MODEL QUESTION PAPER**
**(2024 ADMISSION ONWARDS)**
**MG5DSECOM304 - ADVANCED GST LAWS**

Duration: 1 Hour 15 Minutes Maximum Marks: 70

Students should attempt at least one question from each course outcome to enhance their overall outcome attainability.

**Part A**

Attempt any ***twenty*** questions. Each question carries ***1*** mark.

1. As per Section 22 of the CGST Act, what is the threshold limit of aggregate turnover for registration of a supplier of goods in a Normal Category State (as per applicable notification)? (U)/ (CO1)
   A) Rs. 10 Lakh B) Rs. 20 Lakh
   C) Rs. 40 Lakh D) Rs. 50 Lakh
2. What is the threshold limit of aggregate turnover applicable to a supplier of services in a Normal Category State for registration purposes? (U)/ (CO1)
   A) Rs. 10 Lakh B) Rs. 20 Lakh
   C) Rs. 40 Lakh D) Rs. 75 Lakh
3. Within how many days from the date on which a person becomes liable to registration must an application for registration be made under Section 25? (U)/ (CO1)
   A) 15 days B) 30 days
   C) 60 days D) 90 days
4. What does the abbreviation 'UIN' stand for under GST law? (U)/(CO1)
   A) Unified Invoice Number B) Unique Identification Number
   C) Universal Import Number D) Unit Identification Number
5. What is the initial period of validity of a Certificate of Registration granted to a Casual Taxable Person (CTP)? (U)/ (CO1)
   A) 30 days B) 60 days
   C) 90 days D) 180 days
6. Which form is prescribed for filing an application for fresh registration under the GST Act? (U)/ (CO1)
   A) GST REG-06 B) GST REG-01
   C) GST REG-07 D) GST REG-10
7. Under the concept of 'deemed registration', if the proper officer fails to take any action within the prescribed time limit from the date of submission of a defect-free application, the registration is deemed to have been granted. What is this prescribed time limit? (U)/ (CO1)
   A) 3 working days B) 15 working days
   C) 30 working days D) 60 working days
8. As per Section 16(4) (post-amendment), the time limit to avail ITC on an invoice/debit note pertaining to a financial year is the earlier of the date of filing the annual return, or the due date of filing the return for which month of the following financial year? (A)/(CO2)

A) September B) October
C) November D) December

9. Which section of the CGST Act, 2017 deals with 'Blocked Credits', i.e., situations where Input Tax Credit is specifically not available? ( A ) / (CO2)
A) Section 16 B) Section 17(5)
C) Section 18 D) Section 49
10. Under which provision can a person who applies for registration within 30 days of becoming liable avail ITC on inputs held in stock immediately before the date from which he becomes liable to pay tax? ( A ) / (CO2)
A) Section 18(1)(a) B) Section 18(1)(c)
C) Section 18(4) D) Section 18(6)
11. What is the rate of interest payable under Section 50 of the CGST Act for delayed payment of tax? (An)/(CO3)
A) 12% p.a. B) 15% p.a.
C) 18% p.a. D) 24% p.a.
12. At what combined rate is Tax Deducted at Source (TDS) required to be deducted under Section 51 (1% CGST + 1% SGST, or 2% IGST)? (An)/ (CO3)
A) 1% B) 2%
C) 5% D) 10%
13. What is the combined rate of Tax Collected at Source (TCS) required to be collected by an e-commerce operator under Section 52 (0.5% CGST + 0.5% SGST, or 1% IGST)? (An)/ (CO3)
A) 0.5% B) 1%
C) 2% D) 5%
14. Within what period from the 'relevant date' must an application for refund of tax under Section 54 ordinarily be filed? (An)/ (CO3)
A) 1 year B) 2 years
C) 3 years D) 5 years
15. As per Section 36, for how many months from the due date of furnishing of the annual return for the relevant year must accounts and records be retained? (U)/(CO4)
A) 36 months B) 60 months
C) 72 months D) 84 months
16. What is the statutorily prescribed due date for filing the Annual Return (GSTR-9) under Section 44? (U)/(CO4)
A) 30th June B) 30th September
C) 31st December D) 31st March
17. Which form is prescribed for filing the 'Final Return' required under Section 45 upon cancellation of registration? (U)/(CO4)
A) GSTR-9 B) GSTR-10
C) GSTR-3B D) GSTR-4
18. Which section of the CGST Act empowers the proper officer to direct a registered person to get his accounts audited by a Chartered Accountant/Cost Accountant? (U)/ (CO4)

A) Section 65 B) Section 66
C) Section 67 D) Section 70

19. Which form must a person seeking to render consultancy services as a GST Practitioner to small/medium taxpayers use for his own enrolment under Section 48? (C)/ (CO5)
A) GST PCT-01 B) GST PCT-05
C) GSTR-9C D) GST ARA-01
20. Officers appointed for the administration of the CGST Act (Commissioner, Joint/Deputy/Assistant Commissioners, etc.) derive their authority under which section of the Act? (U)/(CO4)
A) Section 3 B) Section 5
C) Section 6 D) Section 9
21. As per Section 65(3), a General Audit of a registered person must be conducted after giving prior intimation of not less than how many working days? (U)/(CO4)
A) 7 working days B) 10 working days
C) 15 working days D) 30 working days
22. Which section of the CGST Act empowers a proper officer to authorise Inspection, Search and Seizure? (U)/(CO4)
A) Section 65 B) Section 66
C) Section 67 D) Section 70 **[20 x 1 = 20]**

**Part B**

Answer any ***Twenty Five*** Questions. Each question carries ***2*** marks

23. The rate of TDS under GST is: (U)/ (CO1)
A) 1% B) 2%
C) 5% D) 10%
24. TCS under GST is collected by: (U)/ (CO1)
A) Every registered supplier B) Input Service Distributor
C) Electronic Commerce Operator D) Casual Taxable Person
25. Interest on delayed payment of GST is provided under: (U)/ (CO1)
A) Section 49 B) Section 50
C) Section 51 D) Section 54
26. Books of accounts and records are generally required to be retained for: (A)/(CO3)
A) 3 years B) 5 years
C) 6 years D) 10 years
27. Maintenance of accounts and records is prescribed under: (A)/(CO3)
A) Section 31 B) Section 35
C) Section 39 D) Section 44
28. The annual return is furnished under: (U)/(CO3)
A) Section 39 B) Section 44
C) Section 45 D) Section 46
29. The final return is to be filed by a person whose registration has been cancelled under: (A)/(CO3)

A) Section 43 B) Section 44
C) Section 45 D) Section 46

30. Special audit may be directed under: (A)/(CO3)
A) Section 61 B) Section 63
C) Section 65 D) Section 66

31. Inspection, search and seizure are dealt with under: (A)/(CO4)
A) Section 65 B) Section 66
C) Section 67 D) Section 68

32. Appeal to the Appellate Authority is provided under: (U)/(CO4)
A) Section 107 B) Section 109
C) Section 112 D) Section 117

33. Penalty for certain offences is prescribed under: (U)/(CO4)
A) Section 122 B) Section 125
C) Section 129 D) Section 132

34. Match the following: (U)/(CO1)

| **List I** | **List II** |
|---|---|
| 1. GST REG-01 | a. Certificate of Registration |
| 2. GST REG-06 | b. Application for new registration |
| 3. GST REG-16 | c. Application for revocation of cancellation of registration |
| 4. GST REG-21 | d. Application for cancellation of registration |

Choose the correct combination:
A) 1-b, 2-a, 3-d, 4-c B) 1-a, 2-b, 3-c, 4-d
C) 1-b, 2-a, 3-c, 4-d D) 1-c, 2-d, 3-a, 4-b

35. Match the following: (U)/ (CO1)

| **List I** | **List II** |
|---|---|
| 1. Casual Taxable Person (CTP) | a. A person occasionally undertaking transactions involving supply of goods/services in a taxable territory where he has no fixed place of business, but is a resident of India |
| 2. Non-Resident Taxable Person (NRTP) | b. A person occasionally undertaking transactions but who is a non-resident of India |
| 3. Input Service Distributor (ISD) | c. An office that distributes ITC on common input services to its units |
| 4. UIN Holder | d. Allotted to specific bodies such as UN agencies/embassies mainly for refund purposes |

Choose the correct combination:

A) 1-a, 2-b, 3-c, 4-d B) 1-b, 2-a, 3-d, 4-c
C) 1-a, 2-b, 3-d, 4-c D) 1-c, 2-d, 3-a, 4-b

36. Match the following: (U)/(CO4)

| List I | List II |
|---|---|
| 1. GSTR-1 | a. Final Return filed on cancellation/surrender of registration |
| 2. GSTR-3B | b. Monthly summary self-assessed return |
| 3. GSTR-9 | c. Annual Return |
| 4. GSTR-10 | d. Statement of outward supplies |

Choose the correct combination:

A) 1-d, 2-b, 3-c, 4-a B) 1-a, 2-b, 3-c, 4-d
C) 1-c, 2-d, 3-a, 4-b D) 1-d, 2-c, 3-b, 4-a

37. Assertion (A): A person supplying goods through an e-commerce operator who is required to collect TCS under Section 52 must compulsorily register under GST irrespective of the threshold exemption limit.
Reasoning (R): Section 24 lists categories of persons for whom registration is compulsory, overriding the general threshold exemption available under Section 22. (A)/(CO2)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).
C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

38. Assertion (A): Input Tax Credit on motor vehicles used for the transportation of goods is not blocked under Section 17(5).
Reasoning (R): Section 17(5) blocks credit only on motor vehicles used for transportation of persons having a seating capacity of up to thirteen persons (including the driver), subject to specified exceptions. (A)/(CO2)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).
C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

39. Assertion (A): As a tax advisor, you inform an e-commerce operator client that TCS under Section 52 is to be collected on the 'net value of taxable supplies' made through it.
Reasoning (R): 'Net value of taxable supplies' excludes the aggregate value of taxable supplies returned to the suppliers during the said month. (C)/(CO5)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).

C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

40. Assertion (A): Every registered person must retain books of account and other records for a period of 72 months from the due date of furnishing of the annual return for the relevant year.
Reasoning (R): The retention period under Section 36 is linked to the outer time limit within which assessment or adjudication proceedings can ordinarily be initiated under the Act.
(U)/(CO4)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).
C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

41. Assertion (A): A Special Audit under Section 66 can be directed by the proper officer even after the completion of a normal audit under Section 65 or scrutiny under Section 61.
Reason (R): A Special Audit under Section 66 is ordered only where the proper officer, having regard to the nature and complexity of the case, is of the opinion that the value has not been correctly declared or the credit availed is not within normal limits. (U)/(CO4)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).
C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

42. Assertion (A): No appeal lies against an order of the Commissioner directing seizure or retention of books of account and documents.
Reasoning (R): Section 121 declares certain orders, including orders sanctioning prosecution and orders of seizure or retention of books of account, as non-appealable.
(U)/(CO4)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).
C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

43. Assertion (A): An officer of Central Tax below the rank of Joint Commissioner may, on his own authority, authorise inspection of any place of business under Section 67.
Reasoning (R): Section 67 requires that the proper officer authorising inspection must not be below the rank of Joint Commissioner and must have reasons to believe that the person has suppressed transactions or has availed excess Input Tax Credit. (U)/(CO4)

A) Both (A) and (R) are true, and (R) is the correct explanation of (A).
B) Both (A) and (R) are true, but (R) is NOT the correct explanation of (A).
C) (A) is true, but (R) is false.
D) (A) is false, but (R) is true.

44. Statement I: Every person who is required to deduct tax at source under Section 51 must compulsorily register under GST, irrespective of the general threshold limit.
Statement II: A person making inter-State taxable supplies is generally exempt from obtaining registration if the aggregate turnover does not exceed the threshold limit.
(U)/ (CO1)

A) Both Statement I and Statement II are true.
B) Both Statement I and Statement II are false.
C) Statement I is true, but Statement II is false.
D) Statement I is false, but Statement II is true.

45. Statement I: An application for revocation of cancellation of registration can ordinarily be filed within 30 days from the date of service of the cancellation order (further extendable in specified circumstances).
Statement II: Revocation of cancellation is permissible even where the registration was cancelled by the taxpayer himself through voluntary application for cancellation.
(U)/ (CO1)

A) Both Statement I and Statement II are true.
B) Both Statement I and Statement II are false.
C) Statement I is true, but Statement II is false.
D) Statement I is false, but Statement II is true.

46. Statement I: A tax consultant may advise a client that Input Tax Credit reversed on account of non-payment to the supplier within 180 days from the date of invoice can be reclaimed once payment is subsequently made to the supplier.
Statement II: Interest is payable on such reversed Input Tax Credit for the period from the date of availment till the date of reversal, irrespective of a subsequent reclaim. (CO5) (Create)

A) Both Statement I and Statement II are true.
B) Both Statement I and Statement II are false.
C) Statement I is true, but Statement II is false.
D) Statement I is false, but Statement II is true.

47. Statement I: The Annual Return under Section 44 is mandatory for every registered person, including Input Service Distributors and Casual Taxable Persons.
Statement II: The Government is empowered to exempt any class of registered persons from the requirement of filing the Annual Return. (U)/(CO4)

A) Both Statement I and Statement II are true.
B) Both Statement I and Statement II are false.
C) Statement I is true, but Statement II is false.
D) Statement I is false, but Statement II is true.

48. Statement I: As a GST Practitioner advising small/medium taxpayers, you may furnish details of outward and inward supplies and file returns on the client's behalf, if so authorised.

Statement II: A GST Practitioner is personally liable for the correctness of the particulars furnished in a return filed by him on behalf of the taxpayer. (C)/(CO5)

A) Both Statement I and Statement II are true.
B) Both Statement I and Statement II are false.
C) Statement I is true, but Statement II is false.
D) Statement I is false, but Statement II is true.

49. Statement I: A person aggrieved by an order of the Appellate Authority may ordinarily file an appeal to the Appellate Tribunal within three months from the date of communication of the order.
Statement II: The Appellate Tribunal has no power to refuse admission of an appeal merely because the amount of tax, Input Tax Credit or fine involved is small. (U)/(CO4)

A) Both Statement I and Statement II are true.
B) Both Statement I and Statement II are false.
C) Statement I is true, but Statement II is false.
D) Statement I is false, but Statement II is true. **[25 x 2 = 50]**